

		Prius' battery," a service that "should have been covered free of charge. Complaint ¶ 49; see also <i>id.</i> ¶¶ 27, 43, 111. Defendants' demurrers to the fourth and fifth causes of action are overruled. Defendants' unopposed Request for Judicial Notice (ROA 32) of Exhibits 1 and 2, which are copies of two executive orders from the California Environmental Protection Agency Air Resources Board, is granted, although neither document was material to the disposition of the demurrer for the reasons state above. Defendants' Request for Judicial Notice of Exhibit 3, a purported October 16, 2013 press release, is denied, although the document was not material to the disposition of the demurrer for the reasons stated above. Should plaintiff desire to amend the complaint to address the deficiencies identified above, plaintiff must file and serve the amended complaint by October 1, 2026. Plaintiff to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed September 9, 2026 (ROA 42), and based thereon continues the September 17, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
9	Padilla v. De Vries International, Inc. 2021-01223097	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$195,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents described below, the court grants the motion as follows: \$5,000 for enhancement award to plaintiff (not to exceed); \$58,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$6,000 for settlement administration fees (not to exceed); and \$10,000 total PAGA penalties (\$7,500 to LWDA). Plaintiff is ordered to file and serve <u>by September 24, 2026</u> a revised class notice (in English and Spanish) that removes the reference in the last sentence of the first paragraph of the "Further Information" section to viewing documents "at the Orange County Superior Court located at 751 West Santa Ana Boulevard, Santa Ana, California 92701." As the court previously advised the parties

		(4/30/26 Order (ROA 138) No. 11) there is no clerk's office in the Civil Complex Center of the Orange County Superior Court. The final approval hearing is scheduled for <u>February 25, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	Retana v. Bar Bakers, LLC 2019-01096563	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of an \$1,000,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$300,000.00 for attorneys' fees (see 12/11/25 Order (ROA 314) No. 8); \$26,246.40 for attorneys' costs; \$11,980.00 for settlement administration fees (see No. 1 below); and \$661,773.60 total PAGA penalties (\$496,330.20 to LWDA). 1. The court deducted \$1,270 from the requested settlement administration fees of \$13,250 for (i) a duplicative \$750 language translation fee; (ii) an unexplained \$240 increase in "settlement calculations" charges (compare Supp. Carraher Decl. (ROA 365) Ex. 2 with Sutherland Decl. (Ex. 4 to ROA 307) Ex. B); and (iii) an unexplained \$280 increase in "account management and reconciliation" charges (compare Supp. Carraher Decl. (ROA 365) Ex. 2 with Sutherland Decl. (Ex. 4 to ROA 307) Ex. B). Plaintiffs are ordered to submit <u>by September 24, 2026</u> a revised proposed order and judgment (including the above amounts) with all exhibits attached (settlement agreement; amendment thereto; and notice letter (in English and Spanish)). The notice letter should be revised to state the above amounts. In addition, only one copy of the English-language version of the notice letter should be attached to the proposed order and judgment as an exhibit. The proposed order and judgment (ROA 369) submitted with the supplemental papers has two English-language copies of the notice letter attached as exhibits. The final accounting hearing is scheduled for <u>June 10, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the status of defendants' settlement payments, the actual amounts